

		comply with valid deposition notices, including the subject notice that resulted in the discovery order. (Knafo Decl. at ¶¶ 41-46, Exhs. 29-32.) Abdullah has not opposed the reasonableness of the monetary sanctions sought or otherwise challenged that Cross-Complainants incurred these fees and costs as a result of his failure to comply with valid deposition notices. Accordingly, Cross-Complainants are awarded \$18,970.10, in reasonable attorneys' fees and costs, against Abdullah, only. (Code Civ. Proc., § 2023.030, subd. (a).) The sanctions are payable within 90 days of the notice of ruling to Ghozland Law Firm. Cross-Complainants are ordered to give notice of the ruling.
7.	2026-1549234 Roe vs. Doe 1, Religious School	Plaintiff John VJP Roe ("Plaintiff") seeks an order sealing Plaintiff's Certificates of Merit and allowing Plaintiff to proceed under a fictitious name. Plaintiff's complaint alleges he was sexually assaulted as a minor. Every plaintiff 40 years of age or older at the time the action is filed is required to file certificates of merit. (Code Civ. Proc., § 340.1, subd. (e).) "The court shall review the application and the certificate of corroborative fact in camera and, based solely on the certificate and any reasonable inferences to be drawn from the certificate, shall, if one or more facts corroborative of one or more of the charging allegations against a defendant has been shown, order that the complaint may be amended to substitute the name of the defendant or defendants." (Code Civ. Proc., § 340.1, subd. (m).) "The court shall keep under seal and confidential from the public and all parties to the litigation, other than the plaintiff, any and all certificates of corroborative fact filed pursuant to subdivision (l)." (Code Civ. Proc., § 340.1, subd. (n).) Plaintiff's motion to seal the Certificates is granted. Due to the sensitive nature of the allegations of this case and Plaintiff's right to privacy, Plaintiff's request allowing him to proceed under a pseudonym is granted. (<i>See, Doe v. Lincoln Unified School Dist.</i> (2010) 188 Cal.App.4th 758, 766.) Plaintiff shall give notice.
8.	2026-1550175 Taylor vs. Hyundai Motor America	Defendant Hyundai Motor America's motion to compel arbitration of Plaintiff James Taylor's claims is denied. Defendant's request for judicial notice is denied as it is unnecessary to ask the court to take judicial notice of materials previously filed in this case. "[A]ll that is necessary is to call the court's attention to

such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9.53.1a.)

Plaintiff’s Complaint alleges a single cause of action for violation of Song-Beverly Act – Breach of Express Warranty arising out of his purchase of a 2021 Hyundai Palisade.

When he purchased the vehicle, it was enrolled in Hyundai’s Bluelink Services.

The Bluelink Connected Services Agreement included an arbitration provision stating that “Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, the Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law.” (Rao Decl., ¶ 6. Ex. 2.)

Under both the Federal Arbitration Act and California arbitration law, the Court must determine whether an agreement to arbitrate exists. (See *Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59 (“when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.”).)

While the arbitration clause in the CSA does state that it applies to disputes relating to “your Vehicle,” Defendant has not shown that Plaintiff’s claims here are related to the bluelink/connected services in the vehicle.

The scope of an arbitration clause “turns on whether the ... claims are ‘rooted’ in the contractual relationship between the parties.” (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692; citation omitted.) In other words, to be arbitrable, the subject claims must have their roots in the relationship between the parties that was created by the contract containing the arbitration provision. (*Id.* at 692-693.)

“[E]ven under a very broad arbitration provision ... tort claims must ‘have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188; other internal citations and quotation marks omitted].)

		Given that Plaintiff seemingly does not allege any defects or issues with the Connected Services, this arbitration provision is not applicable. Plaintiff's claims do not arise out of the relationship created by the CSA. Furthermore, Plaintiff declares in opposition that he never saw or consented to the CSA because when he purchased the car, a dealership employee used Plaintiff's phone to set up Bluelink on his behalf and did not inform Plaintiff of the arbitration clause in the agreement that he agreed to on Plaintiff's behalf. (Taylor Decl., ¶¶ 7-12.) Defendant submits a declaration in reply stating that in order to <i>continue</i> using the Bluelink services after an update, Plaintiff would have had to click the box to acknowledge that they "read and agree[d] to the Blue Link Terms & Conditions." (Rao Rely Decl., ¶ 3.) However, no evidence of this is provided with the declaration. Defendant has not demonstrated Plaintiff's knowledge of and assent to the CSA. (See <i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294; <i>B.D. v. Blizzard Entertainment, Inc.</i> (2022) 76 Cal.App.5th 931, 944.) Based on the foregoing, Defendant's motion to compel arbitration is denied as Defendant has not shown the arbitration agreement in the CSA applies to Plaintiff's claims or is enforceable given Plaintiff's lack of notice and assent. Plaintiff shall give notice.
9.	2023-1331349 Lowe vs. Haverkamp	The motion of defendants Peter Gene Haverkamp and Peter Gene Haverkamp dba Southern Counties Construction for summary judgment on plaintiff John Lowe's complaint is denied. <u>Facts</u> This is a negligence action for injuries suffered by Plaintiff, an employee of subcontractor Beach Cities Glass, Inc., when he fell from scaffolding while installing glass on a home in the backyard. He alleges that Defendants, the general contractor, failed to correctly install, inspect and maintain the scaffold from which he fell. [Complaint (ROA #2). ¶ GN-1.] By stipulation and order, Intervenor filed a complaint in intervention based on its subrogation rights. [ROA ## 87, 90.] Defendant offers evidence that he merely offered the scaffolding as an option; Plaintiff's work instructions came from his employer, who participated in erection of Defendant's scaffolding. Defendant